

Court No. - 43

Case :- CRIMINAL APPEAL No. - 496 of 2015

Appellant :- Vishal Gupta

Respondent :- State Of U.P.

Counsel for Appellant :- Rajiv Lochan Shukla, Ram Chandra Solanki

Counsel for Respondent :- Govt. Advocate

Hon'ble Naheed Ara Moonis, J.

As prayed by the learned counsel for the appellant, put up tomorrow i.e. on 11.02.2015, as unlisted.

Order Date :- 10.2.2015

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Appellant :- Vishal Gupta

Respondent :- State Of U.P.

Counsel for Appellant :- Rajiv Lochan Shukla, Ram Chandra Solanki

Counsel for Respondent :- Govt. Advocate

Hon'ble Naheed Ara Moonis, J.

Sri Shrawan Kumar Tripathi, Advocate has filed his memo of appearance on behalf of U.P. Power Corporation Limited today, which is taken on record.

Heard the learned counsel for the appellant, learned counsel appearing on behalf of the U.P. Power Corporation Limited and the learned A.G.A. for the State.

Admit.

Summon the lower court record.

The instant appeal has been preferred by the appellant against the conviction and sentence dated 19.1.2015 passed by the learned Special Judge (E.C. Act), Etawah in Special Case No. 13 of 2010 arising out of case Crime No. 200 of 2010, under Section 135 (B) of the Electricity Act, Police Station Usarhar, district Etawah whereby the appellant has been awarded one year simple imprisonment and fine of Rs. 7,78,305/- out of which Rs. 5,18,870/- is recoverable as a decree of civil suit by the electricity department and rest amount shall be deposited by him as fine with default stipulation.

It has been submitted by the learned counsel for the appellant that the conviction of the appellant is against the weight of evidence on record. The procedure prescribed under 8.1 para of the U.P. Electricity Supply Code 2005 about search, seizure has not been followed by the checking staff. The appellant is not the In-charge or supervisor of the factory where the raid was conducted. The owner of the factory has not been made an accused. One of the member of the raiding party Chavi Nath was examined as defense witness who has totally denied that he was not the member of the checking team. The trial court has wrongly disbelieved the statement of defence witness and has recorded perverse finding determining fine and civil liability in an ex parte manner,

without reference to the load and financial gain. The fine is too excessive which is unwarranted. The appellant has been convicted with maximum sentence of one year under Section 135 (1) of the Electricity Act with fine of Rs. 7,78,305/-. The appellant is on interim bail and was on bail during trial. There is remote chances of early hearing of the appeal and the purpose of filing the appeal would be frustrated in case the appellant is not enlarged on bail. The appellant is ready to deposit half of the amount of fine for which he may be granted some reasonable time.

Per contra the learned counsel for the complainant has opposed the prayer for bail and supported the finding recorded by the trial court and has contended that it is crystal clear from the judgment that the appellant was the supervisor of the factory. The appellant is In-charge of factory, which is manufacturing bricks of cement, without having any valid electricity connection and two motors of 3.75 HP were found running having connection from adjacent tube well belonging to Dinesh Chand Yadav owner of the factory. Thus the liability has rightly been imposed upon the appellant.

Considering the entire facts and circumstances of the case, let the appellant Vishal Gupta convicted and sentenced in Special Case No. 13 of 2010 arising out of Case Crime No. 200 of 2010, under Section 135 (B) of the Electricity Act, police station Usarhar, district Etawah be released on bail on his furnishing a personal bond with two sureties each in the like amount to the satisfaction of the court concerned.

Photo copy of the bail bonds be kept on the record of this appeal.

However, the appellant is directed to deposit 50% of the fine within 45 days from the date of receipt of the certified copy of this order.

Office is directed to prepare paper book after receipt of lower court record and list the case in due course for hearing.

Order Date :- 11.2.2015
Shahnawaz

Court No. - 84

Case :- CRIMINAL APPEAL No. - 496 of 2015

Appellant :- Vishal Gupta

Respondent :- State of U.P.

Counsel for Appellant :- Rajiv Lochan Shukla,Ram Chandra Solanki

Counsel for Respondent :- Govt.Advocate

Hon'ble Ajit Singh,J.

At the request of learned counsel for the appellant, the matter be listed after four weeks for final hearing.

Order Date :- 12.2.2020

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